

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Rachel Murgio	Team: Squad #02	CCRB Case #: 201906552	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Saturday, 07/13/2019 5:00 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 8/30/2021	Precinct: 103
Date/Time CV Reported Sun, 07/14/2019 7:25 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 07/26/2019 10:56 AM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Edward Wetherell	01028	951430	103 PCT
2. POM Lance Walter	30215	951417	103 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Lance Walter	Abuse: Police Officer Lance Walter forcibly removed § 87(2)(b) to the hospital.	A . Exonerated
B . POM Edward Wetherell	Abuse: Police Officer Edward Wetherell forcibly removed § 87(2)(b) to the hospital.	B . Exonerated
C . POM Lance Walter	Force: Police Officer Lance Walter used physical force against § 87(2)(b)	C . Unfounded
D . POM Edward Wetherell	Force: Police Officer Edward Wetherell used physical force against § 87(2)(b)	D . Unfounded

Case Summary

On July 14, 2019, § 87(2)(b) called IAB and filed this complaint, generating IAB Log 19-27711 (Original Log # 19-27270). The complaint was received at the CCRB on July 26, 2019.

On July 13, 2019, at approximately 5:00 p.m., § 87(2)(b) was at her mother's apartment at § 87(2)(b) in Jamaica, NY. § 87(2)(b)'s family called 911 on her following a dispute over custody of § 87(2)(b)'s son. Police Officer Lance Walter and Police Officer Edward Wetherell, both of the 103rd Precinct, responded first, followed by two EMTs.

§ 87(2)(b)'s family members told Police Officer Walter, Police Officer Wetherell and the EMTs that § 87(2)(b) was not taking her medication and was behaving erratically. After calling their supervisor, the EMTs determined that § 87(2)(b) needed to be brought to the hospital. Police Officer Walter and Police Officer Wetherell handcuffed § 87(2)(b) and brought her to the ambulance so that she could be transported to § 87(2)(b) (**Allegation A: Abuse of Authority – Forcible Removal to Hospital – Exonerated; Allegation B: Abuse of Authority – Forcible Removal to Hospital – Exonerated**) While doing so, the officers allegedly held § 87(2)(b) by the back of the neck and pushed her towards the ground, and then forced her to walk bent double to the ambulance (**Allegation C: Force – Physical force – Unfounded and Allegation D: Force – Physical force – Unfounded**)

Body-worn camera (BWC) footage was obtained in the course of the investigation. It is located in IAs #39 and 40 (Board Review 01 and 02) and summarized in IA #55 (Board Review 03).

Findings and Recommendations

Allegation A: Abuse of Authority – Police Officer Lance Walter forcibly removed § 87(2)(b) to the hospital.

Allegation B: Abuse of Authority – Police Officer Edward Wetherell forcibly removed § 87(2)(b) to the hospital.

§ 87(2)(b) was interviewed at the CCRB on November 14, 2019 (Board Review 04). Police Officer Walter was interviewed at the CCRB on January 6, 2020 (Board Review 05).

It is undisputed that on July 13, 2019, at approximately 5:00 p.m., § 87(2)(b) was in her mother's apartment at § 87(2)(b) in Jamaica, NY, when a family member called 911. Police Officer Walter, Police Officer Wetherell and two EMTs arrived, and an EMT performed a psychiatric evaluation on § 87(2)(b). § 87(2)(b) was handcuffed and brought to § 87(2)(b).

§ 87(2)(b) stated that an officer, identified by the investigation as Police Officer Walter, told her that she had to go to the hospital. He then brought her to an ambulance with EMTs.

Police Officer Walter stated that he and Police Officer Wetherell responded to an ambulance case for an emotionally disturbed person (EDP), identified as § 87(2)(b) EMTs, who arrived independently of Police Officer Walter and Police Officer Wetherell, assessed § 87(2)(b) and determined that she had to go to the hospital. EMTs verbally communicated this to Police Officer Walter and Police Officer Wetherell. § 87(2)(b) verbally and physically resisted being brought to the hospital. Police Officer Walter and Police Officer Wetherell placed § 87(2)(b) in handcuffs for safety reasons and escorted her to an ambulance.

Footage from the BWC of Police Officer Walter (Board Review 02) shows that, starting at 12:50, a female EMT asks § 87(2)(b) questions as a psychiatric evaluation at the scene. The female EMT then leaves the apartment at 18:33 to call her supervisor, and when she returns at 20:40, she tells both Police Officer Walter and Police Officer Wetherell that her supervisor said that § 87(2)(b) had to go to the hospital. Police Officer Walter and Police Officer Wetherell then tell § 87(2)(b) that she has to go to the hospital and attempt to talk her into going with them voluntarily. Both officers and the female EMT explain that it was the EMS supervisor's decision to take § 87(2)(b) to the hospital. § 87(2)(b) verbally and physically resists until she is placed in handcuffs. After being placed in handcuffs, § 87(2)(b) walks with EMTs and the police officers to the ambulance.

Patrol Guide Procedure 216-01 states that when a person other than a prisoner receives medical aid or assistance, officers should cooperate with ambulance/ hospital personnel in every reasonable manner.

§ 87(2)(g)

Therefore, it is recommended that **Allegations A and B be Exonerated.**

Allegation C: Force – Police Officer Lance Walter used physical force against § 87(2)(b)

Allegation D: Force – Police Officer Edward Wetherell used physical force against § 87(2)(b)

§ 87(2)(b) stated that, after telling her she had to go to the hospital, Police Officer Walter took her neck in his right hand and pushed her towards the ground by the back of the neck. He possibly pushed her into a kneeling position, and he continued to apply pressure after § 87(2)(b) said she was in pain § 87(2)(b). Police Officer Walter then handcuffed § 87(2)(b) and brought her out to the ambulance forcing her to walk bent double.

Police Officer Walter stated that when § 87(2)(b) did not cooperate in going to the hospital and became hostile, he decided to place her in handcuffs for the safety of those in the room. Police Officer Walter placed § 87(2)(b) in handcuffs with the aid of Police Officer Wetherell. § 87(2)(b) was not pushed into a kneeling position by an officer and Police Officer Walter did not recall any physical contact with § 87(2)(b) besides placing her in handcuffs. He did not recall her complaining of pain § 87(2)(b). Police Officer Walter did not recall § 87(2)(b) being forced to walk bent over to the ambulance or complaining of any force used during the incident.

Footage from the BWC of Police Officer Walter (Board Review 02) shows that, starting at 21:10, § 87(2)(b) verbally refuses to go to the hospital several times, crosses her arms and sits in a chair and then slides to the floor on her own. Police Officer Walter and Police Officer Wetherell try unsuccessfully to lift § 87(2)(b) while she holds her arms close to her body and twists. § 87(2)(b) stands only after officers begin to put handcuffs on her. § 87(2)(b) accuses the officers of pushing her, though the officers are not seen pushing her on the BWC footage. § 87(2)(b) tries to gather belongings before leaving and raises her voice several times, and Police Officer Wetherell places her in handcuffs with the assistance of Police Officer Walter. § 87(2)(b) then walks upright with Police Officer Walter and Police Officer Wetherell to the elevators and out to the ambulance, while yelling that the officers pushed her. The BWC footage does not show § 87(2)(b) being pushed either in the apartment or on the way to the ambulance.

§ 87(2)(g)
it is recommended that **Allegations C and D** be **Unfounded**.

Civilian and Officer CCRB Histories

- This is § 87(2)(b)'s first complaint with the CCRB.
- Police Officer Wetherell has been a member of service for 8 years and has been a subject in 6 CCRB complaints and 9 allegations, none of which were substantiated. § 87(2)(g)
§ 87(2)(g)
- Police Officer Walter has been a member of service for 8 years and has been a subject in 7 CCRB cases and 13 allegations, of which one was substantiated.
 - Case #201802606 involved a substantiated allegation of gun pointed against Police Officer Walter. The Board recommended Command Discipline A and the NYPD imposed Command Discipline A.
 - § 87(2)(g)
§ 87(2)(g)

Mediation, Civil and Criminal Histories

- This complaint was not suitable for mediation.
- On January 14, 2019, a request for any Notice of Claim filed by § 87(2)(b) in regard to the incident was submitted to the New York City Comptroller. Any response will be added to the case file upon receipt.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
§ 87(2)(g)

Squad No.: _____

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date